

ENTERPRISE CLOUD & DATA PROCESSING AGREEMENT

Parties: HelioCloud Services Inc. ↔ Northstar Analytics Pvt. Ltd.

Effective: 2026-03-10 **Expiration:** 2028-03-09

Synthetic contract for ContractLens testing. All names, dates, amounts and terms are fictional.

1. PURPOSE AND DEFINITIONS

This agreement establishes the commercial, operational and legal framework between the parties for the subject matter described in the commercial terms. Capitalized terms have the meanings stated here, in schedules, statements of work and signed orders incorporated into the agreement.

2. COMMERCIAL, DEADLINE AND OBLIGATION REGISTER

Category	Requirement
Processing	Provider processes customer data only for documented purposes and approved subprocessors.
Subprocessors	30 days' prior notice of new subprocessors; customer may object on reasonable security grounds.
Breach Notice	Initial notice without undue delay and, where practicable, within 24 hours of confirmation.
Data Location	Primary processing in Singapore and India; restricted datasets remain within India.
Retention	Production customer data deleted within 45 days after termination, subject to legal exceptions.
Audit	One remote audit annually; on-site audit after a material security incident.
Exit	CSV/JSON data export and migration assistance for up to 60 days at stated rates.

3. PERFORMANCE AND REPORTING

Each party shall perform its stated obligations using commercially reasonable skill and care. The responsible party shall maintain records supporting performance, report material exceptions, and cooperate on remediation. Stated milestones, notice periods, payment dates and service levels are contractual requirements where applicable.

4. CONFIDENTIALITY

Each party shall protect non-public commercial, technical, financial and operational information received from the other party and disclose it only to persons with a need to know and equivalent confidentiality obligations. Required legal disclosures are permitted where applicable.

5. DATA PROTECTION AND SECURITY

Where protected or personal data is processed, the parties shall apply appropriate safeguards, restrict access, maintain incident-response procedures, and cooperate on legally required notices. Approved subcontractors handling protected information remain subject to equivalent controls.

6. INTELLECTUAL PROPERTY

Pre-existing intellectual property remains with its owner. Rights in newly created deliverables follow the allocation stated in the commercial terms, subject to payment and stated license restrictions. No implied rights are granted.

7. WARRANTIES, LIABILITY AND INSURANCE

Each party represents that it has authority to enter the agreement and will comply with applicable law. Liability is subject to the caps, exclusions and insurance requirements stated above. A responsible party shall cooperate with covered third-party claims.

8. TERMINATION AND TRANSITION

On termination, the parties shall stop new work except for orderly transition, settle undisputed amounts, return or delete protected information where required, and complete surviving obligations. Payment, confidentiality, IP, audit and dispute provisions survive as applicable.

9. DISPUTE RESOLUTION AND GOVERNING LAW

The parties shall first attempt good-faith escalation through designated representatives. If unresolved, the dispute shall proceed to the agreed courts or arbitration forum. Governing law is India unless a signed schedule expressly states otherwise.

10. GENERAL

Amendments require written authorization. Assignment is restricted as stated by the agreement. If a provision is unenforceable, the remaining provisions continue. Notices must be sent to the designated representatives and addresses maintained by the parties.

SIGNATURES

Authorized representatives confirm acceptance of this agreement.

Party A	Party B
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____